Filed
5/26/2026 12:00 AM
**Beverley McGrew Walker**
District Clerk
Fort Bend County, Texas
Tracy Morales

**NO. 25-DCV-328122**

IN THE MATTER OF THE MARRIAGE OF
GLORIA ESPINA AND REINALDO J. AGUIAR MARCANO

**IN THE DISTRICT COURT OF FORT BEND COUNTY, TEXAS**
**387TH JUDICIAL DISTRICT**

# RELATOR'S FOURTH EMERGENCY AND MANDATORY MOTION FOR DE NOVO HEARING (REGARDING HEARING OF SEPTEMBER 11, 2025)

TO THE HONORABLE OSCAR TELFAIR, III, PRESIDING JUDGE:

Relator, REINALDO J. AGUIAR MARCANO, files this Fourth Mandatory Motion for De Novo Hearing.

The Court held a hearing on September 11, 2025, which resulted in verbal orders that would eventually be distorted and memorialized in the void "Temporary Orders" (Index #89). However, the draft for that order was not filed until many days later, and the final order was not signed until October 15, 2025. This inordinate and unexplained delay between the hearing and the signing of the order deprived Relator of his statutory three-day window under Texas Family Code §201.015 to request a de novo review of the September 11th proceedings.

Because Relator was procedurally prevented from exercising his mandatory right in a timely fashion, the right is preserved. Relator hereby invokes his right to a de novo hearing for all matters addressed in the September 11, 2025 hearing.

This Court's refusal to rule on this and other mandatory motions constitutes an abdication of judicial duty and is the subject of proceedings before the Supreme Court of Texas.

# PRAYER

Relator prays that this Court GRANT an immediate de novo hearing on all matters related to the September 11, 2025, hearing.

Respectfully submitted,



**Reinaldo J. Aguiar Marcano**

*Pro Se*

## CERTIFICATE OF SERVICE

I certify that on May 23, 2026, a true and correct copy of this Motion was served on all counsel of record via the court's electronic filing system.



**Reinaldo J. Aguiar Marcano**

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